

CODE OF CRIMINAL PROCEDURE
TITLE 1. CODE OF CRIMINAL PROCEDURE
CHAPTER 50. FIRE INQUESTS

Art. 50.01. INVESTIGATIONS.

Text of section effective until April 01, 2027

When an affidavit is made by a credible person before any justice of the peace that there is ground to believe that any building has been unlawfully set or attempted to be set on fire, such justice shall cause the truth of such complaint to be investigated.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722.

Repealed by Acts 2025, 89th Leg., R.S., Ch. 202 (H.B. [1610](#)), Sec. 3.01, eff. April 1, 2027.

Art. 50.02. PROCEEDINGS.

Text of section effective until April 01, 2027

The proceedings in such case shall be governed by the laws relating to inquests upon dead bodies. The officer conducting such investigations shall have the same powers as are conferred upon justices of the peace in the preceding Articles of this Chapter.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722.

Repealed by Acts 2025, 89th Leg., R.S., Ch. 202 (H.B. [1610](#)), Sec. 3.01, eff. April 1, 2027.

Art. 50.03. VERDICT IN FIRE INQUEST.

Text of section effective until April 01, 2027

The jury after inspecting the place in question and after hearing the testimony, shall deliver to the justice holding such inquest its written signed verdict in which it shall find and certify how and in what manner such fire happened or was attempted, and all the circumstances attending the same, and who are guilty thereof, and in what manner. If such a jury is unable to so ascertain, it shall find and certify accordingly.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 968, ch. 399, Sec. 2(A), eff. Jan. 1, 1974.

Repealed by Acts 2025, 89th Leg., R.S., Ch. 202 (H.B. [1610](#)), Sec. 3.01, eff. April 1, 2027.

Art. 50.04. WITNESSES BOUND OVER.

Text of section effective until April 01, 2027

If the jury finds that any building has been unlawfully set on fire or has been attempted so to be, the justice holding such inquest shall bind over the witnesses to appear and testify before the next grand jury of the county in which such offense was committed.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722.

Repealed by Acts 2025, 89th Leg., R.S., Ch. 202 (H.B. [1610](#)), Sec. 3.01, eff. April 1, 2027.

Art. 50.05. WARRANT FOR ACCUSED.

Text of section effective until April 01, 2027

If the person charged with the offense, if any, be not in custody, the justice of the peace shall issue a warrant for his arrest, and when arrested, such person shall be dealt with as in other like cases.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722.

Repealed by Acts 2025, 89th Leg., R.S., Ch. 202 (H.B. [1610](#)), Sec. 3.01, eff. April 1, 2027.

Art. 50.06. TESTIMONY WRITTEN DOWN.

Text of section effective until April 01, 2027

In all such investigations, the testimony of all witnesses examined before the jury shall be reduced to writing by or under the direction of the justice and signed by each witness. Such testimony together with the verdict and all bail bonds taken in the case shall be certified to and returned by the justice to the next district or criminal district court of his county.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722.

Repealed by Acts 2025, 89th Leg., R.S., Ch. 202 (H.B. [1610](#)), Sec. 3.01, eff. April 1, 2027.

Art. 50.07. COMPENSATION.

Text of section effective until April 01, 2027

The pay of the officers and jury making such investigation shall be the same as that allowed for the holding of an inquest upon a dead body, so far as applicable, and shall be paid in like manner. Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722.

Repealed by Acts 2025, 89th Leg., R.S., Ch. 202 (H.B. [1610](#)), Sec. 3.01, eff. April 1, 2027.